

25 July 2025 / mti

29534/ICA3



ELCOMPONICS HOLDINGS B.V. (The Netherlands) vs/ 1. INVICTUS GMBH (Austria)
2. INVICTUS CABLE GMBH (Austria)

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Dear Mesdames and Sirs,

The Secretariat acknowledges receipt of Respondent's correspondence dated 15 July 2025.

Constitution of the Arbitral Tribunal

The arbitration agreement provides for one arbitrator.

As the parties failed to jointly nominate the sole arbitrator, the Court will appoint the sole arbitrator (Article 12(3)).

With respect to the sole arbitrator's qualifications, we understand that Claimant requests that the sole arbitrator should have: **(i)** extensive experience in international commercial arbitration, particularly involving joint venture disputes, shareholder agreements, and complex financial issues **(ii)** financial understanding sufficient to comprehend accounting issues and expert evidence related to EBITDA calculations, financial statement analysis and valuation methodologies; **(iii)** fluency in English; and **(iv)** availability to conduct the arbitration efficiently with attention to the time-sensitive nature of Put Option enforcement.

Respondents submitted that the aforementioned qualifications listed by Claimant should constitute a proposal or guideline for the Court rather than an absolute requirement.

In relation to the sole arbitrator's experience with the law applicable to the dispute, Claimant submits that the sole arbitrator should have expertise with English law (the governing law of the SHA) as a fundamental requirement, completed by an understanding of Austrian corporate law principles relevant to the dispute.

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Secretariat of ICC International Court of Arbitration | Secrétariat de la Cour Internationale d'Arbitrage

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Respondents submit that the sole arbitrator should be primarily qualified to rule on matters of Austrian law, but also be acquainted with English law. Respondents submit that the Court should appoint an arbitrator with a law degree from Austria, or at the very least, an arbitrator with substantial knowledge of and expertise in Austrian corporate law.

On the basis of the above, we understand that **in principle both parties agree** on the following qualifications:

- experience in international commercial arbitration, particularly involving joint venture disputes, shareholder agreements, and complex financial issues (*ideally financial understanding sufficient to comprehend accounting issues and expert evidence related to EBITDA calculations, financial statement analysis and valuation methodology*);
- previous experience with both Austrian and English law applicable;
- fluency in English;
- availability to conduct the arbitration efficiently in light of the time sensitive nature of the dispute.

We invite the parties to confirm **by 31 July 2025** that our understanding regarding the qualifications of the sole arbitrator is correct.

We recall that Article 13(5) of the Rules provides in the relevant part that the sole arbitrator or the president of the arbitral tribunal shall be of a nationality other than those of the parties. However, in suitable circumstances and provided that none of the parties objects, the sole arbitrator or the president of the arbitral tribunal may be chosen from a country of which any of the parties is national.

In light of the above, we invite the parties to inform us **by 31 July 2025** whether they agree on an Austrian national to act as sole arbitrator in the present case.

Yours faithfully,



Mihaela Tarnovschi
Deputy Counsel
Secretariat of the ICC International Court of Arbitration